

24STCV26593 24STCV26593

County: los-angeles

Division: Civil Law and Motion

Department: 730

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Case Number: 24STCV26593 Hearing Date: September 16, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

DERRICK

BRUCE,

Plaintiff,

vs.

FCA

US, LLC, et al.

Defendants.

Case No.:

24STCV26593

Hearing

Date:

September 16, 2026

ORDER

GRANTING MOTION FOR SUMMARY ADJUDICATION

I. BACKGROUND

Plaintiff Derrick Bruce ("Bruce")

entered into a warranty contract with Defendant FCA US, LLC ("FCA") regarding a 2019 Dodge Challenger ("subject vehicle"). The subject vehicle allegedly has defects and nonconformities making the car effectively worthless. GM allegedly was aware of the subject vehicle's defects and failed to disclose the existence of defects at all times to Bruce. Defendant Cerritos Dodge Chrysler Jeep Ram ("Cerritos") allegedly failed to repair the vehicle. Bruce sued Defendants for six causes of action, including failure to repair and fraudulent inducement.

On May 28, 2026, FCA filed the instant motion for summary adjudication.

No party filed an opposition.

III. LEGAL STANDARD

A

party may move for summary judgment "if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc. § 437c, subd. (a).^[1]) "[I]f all the evidence submitted, and all inferences reasonably deducible from the evidence and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law," the moving party will be entitled to summary judgment. (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

The

moving party bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact, and if he does so, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850, citing to § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence.

(Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

Neither

a moving nor responding party may rely on the mere allegations or denials of its pleadings. A moving party must submit specific admissible evidence showing that the responding party cannot establish at least one element of his, her or its cause of action or defense. The responding party, to defeat the motion, must submit specific admissible evidence showing that a triable issue of material fact does exist as to that element of the cause of action or defense. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

The

“Golden Rule” on a motion for summary judgment or summary adjudication is that “if [a fact] is not set forth in the separate statement, it does not exist.” (Zimmerman, Rosenfeld, Gersh & Leeds LLP v. Larson (2005) 131 Cal.App.4th 1466, 1477, citing United Community Church v. Garcin (1991) 231 Cal.App.3d 327, 337.).

IV. DISCUSSION

FCA requests the Court

grant summary adjudication as to the second, fourth and sixth causes of action for violation of Civil Code section 1793.2, subdivision (b), breach of implied warranty of merchantability, and fraudulent inducement – concealment, respectively. FCA requests the second and fourth causes of action be granted summary adjudication as Bruce cannot present any triable issues of material fact, while the sixth should be subject to adjudication as it is barred by case law.

A. Statement of Facts

On August 25, 2019, Bruce purchased the subject vehicle from Jeep Chrysler Dodge Ram Fiat of Ontario (“Ontario”). (UMF 1.) Bruce did not obtain any information about the subject vehicle via research or from FCA prior to purchase. (UMF 60, 71.) The vehicle was accompanied by a New Vehicle Limited Warranty that covered repairs needed to correct defects in material or workmanship of covered parts. (UMF 2-3.)

On August 27, 2019, Bruce presented the subject vehicle to Ontario for a detail service. (UMF 6.) From November 2019 to January 2023, Bruce brought in the subject vehicle to Cerritos 10 times

for routine maintenance. (UMF 7-17.) From July 1, 2023, to October 25, 2024, Bruce brought in the subject vehicle to Cerritos for issues with the cooling system, cooling fan, and coolant loss 7 times. (UMF 18-22.) On November 5, 2024, Bruce presented the subject vehicle to Cerritos due to a concern that the vehicle struggled to start. (UMF 24.)

B. Second

Cause of Action – Violation of Civil Code Section 1793.2, Subdivision (b)

FCA first requests the

Court grant summary adjudication as to the causes of action for violation of Civil Code section 1793.2, subdivision (b), as there is no indication that any repair did not occur within a reasonable amount of time. Civil Code section 1793.2, subdivision (b) provides that, when services and/or repair are necessary because goods do not conform with express warranties, repair shall be commenced within a reasonable time by the manufacturer, or within 30 days if not otherwise outlined.

The undisputed evidence

shows that all repairs were completed within, at most, 9 days. (UMF 25-26.) No vehicle visits to the dealership lasted more than 30 days, the limit for reasonableness under Civil Code section 1793.2. The fact certain repairs concerned the same issue does not artificially extend the repair period. As outlined by the persuasive authority *Bui v. Mercedes-Benz U.S.A., LLC* (N.D. Cal. 2024) 744 F.Supp.3d 910, 913, Civil Code section 1793.2, subdivision (b), is only concerned with whether a single repair attempt took more than 30 days. If no single attempt took more than 30 days, as are the facts in this case, there is no basis for a Civil Code section 1793.2, subdivision (b) claim.

FCA has met its burden,

which shifts to Bruce. As Bruce did not oppose this motion, the Court grants summary adjudication as to this cause of action.

C. Fourth

Cause of Action - Breach of Implied Warranty

FCA requests the Court

grant summary adjudication as to the cause of action for breach of implied warranty as, under Civil Code section 1795.5, subdivision (c), the duration of a warranty of merchantability is limited to one year following the sale of a

new consumer good. FCA argues that Bruce cannot prove the subject vehicle was unmerchantable at the time of purchase or within the following year, as there is no claim of defect during the time period or any indication of a 'latent' defect. Merchantability provides protection from "fundamental defects"; therefore, a vehicle need not be perfect, but only "reasonable suited for ordinary use." (Brand v. Hyundai Motor America (2014) 226 Cal. App. 4th 1538, 1545.)

Here, FCA has provided sufficient evidence that the subject vehicle did not have any fundamental defects that made it unsuitable for ordinary use. During the year period following Bruce's purchase, Bruce only brought the vehicle in for detail service or routine maintenance. (UMF 6-10.) Potential defects of the cooling system, the first identified issue, were not a problem until July 2023, almost four years after purchase of the vehicle. (UMF 18.)

There is no indication Bruce has any evidence to demonstrate a latent defect existed at the time of sale. Bruce did not oppose this motion with any evidence to support evidence of a latent defect, the Court grants summary adjudication as to this cause of action.

D. Sixth

Cause of Action - Fraudulent Inducement - Concealment

FCA requests the Court grant summary adjudication as to the cause of action for fraudulent inducement – concealment, as Bruce has no evidence to support the existence of the alleged 'engine defect', FCA's knowledge and concealment of the 'engine defect', or any damage associated with the concealment. Fraud based on concealment requires a showing of the defendant concealing or suppressing a material fact, the defendant having a duty to disclose the fact, intentionality in concealment to defraud a plaintiff, justifiable reliance, and sustained damages. (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311.)

Here,

FCA provides sufficient evidence that Bruce does not have evidence to establish existence, knowledge, or concealment of the alleged defect. A defendant may satisfy their burden on summary judgment by showing that a claim "cannot be established" because of the lack of evidence on some essential element of the claim. (Union Bank v. Superior Court (1995) 31 Cal.App.4th 574, 590.) In response to FCA's discovery requests, Bruce was

unable to provide any facts or documents supporting essential elements of this cause of action. (UMF 45.) As Bruce did not oppose this motion, there is no indication any evidence exists calling into dispute FCA's knowledge or concealment of this action.

The

Court grants summary adjudication as to this cause of action. The Court does not address the merits of the duty of disclosure or economic loss rule arguments, as there is already sufficient basis to grant summary adjudication.

V. CONCLUSION

Defendant FCA US, LLC's motion for summary adjudication is GRANTED, in full.

FCA is to give notice.

DATED:

September 16, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at SMCDEPT730@lacourt.org with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the

hearing to argue.

- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated statutory references are to the Code of Civil Procedure.

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FCA
US, LLC, et al.

Defendants.

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24STCV26593

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ORDER

GRANTING MOTION FOR SUMMARY JUDGMENT

I. BACKGROUND

Plaintiff Derrick Bruce ("Bruce") entered into a warranty contract with Defendant FCA US, LLC ("FCA") regarding a 2019 Dodge Challenger ("subject vehicle"). The subject vehicle allegedly has defects and nonconformities making the car effectively worthless. GM allegedly was aware of the subject vehicle's defects and failed to disclose the existence of defects at all times to Bruce. Defendant Cerritos Dodge Chrysler Jeep Ram ("Cerritos") allegedly failed to repair the vehicle. Bruce sued Defendants for six causes of action, including negligent repair.

On May 28, 2026, Cerritos filed the instant motion for summary judgment. No party filed an opposition.

III. LEGAL STANDARD

A party may move for summary judgment "if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc.[1] § 437c, subd. (a).) "[I]f all the evidence submitted, and all inferences reasonably deducible from the evidence and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law," the moving party will be entitled to summary judgment. (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

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“Golden Rule” on a motion for summary judgment or summary adjudication is that “if [a fact] is not set forth in the separate statement, it does not exist.” (Zimmerman, Rosenfeld, Gersh & Leeds LLP v. Larson (2005) 131 Cal.App.4th 1466, 1477, citing United Community Church v. Garcin (1991) 231 Cal.App.3d 327, 337.).

IV. DISCUSSION

Cerritos requests the Court grant summary judgment as to the sole cause of action asserted against Cerritos, negligent repair, as it is barred by the economic loss rule and Bruce cannot present any triable issue of material fact.

A. Statement of Facts

On August 25, 2019, Bruce purchased the subject vehicle from Jeep Chrysler Dodge Ram Fiat of Ontario (“Ontario”). (UMF 1.) Bruce presented the vehicle for repair of a ‘warrantable concern’ to Cerritos one time during the standard powertrain warranty period and four times during Bruce’s optional mechanical protection service warranty period. (UMF 4.) During these visits, Bruce and Cerritos contracted for performance of auto repair services; services were performed pursuant to contract. (UMF 4, 8.)

No personal injury is claimed stemming from the repair, nor is there any evidence of intentional property damages. (UMF 10.)

B. Fifth

Cause of Action – Negligent Repair

The Court finds the cause of action for negligent repair is barred by the economic loss rule. "In general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 922.) There are few exceptions to traditional contract remedy restrictions: physical injury, breach of covenant of good faith and fair dealing in insurance contracts, wrongful discharge in violation of fundamental public policy, or fraudulent inducement. (Erich v. Menezes (1999) 21 Cal.4th 543, 551-52.)

Here, none of the exceptions apply. Bruce has not alleged any physical injury to his person or intentional damage to his car. Neither FCA nor Cerrito are insurance brokers, and therefore no potentially applicable contracts concern insurance. There is no evidence of wrongful discharge in violation of public policy, nor is there any indication of fraudulent inducement. Therefore, any alleged violation of the alleged contract cannot be a basis for seeking remedies in tort. This cause of action fails, as a matter of law.

As negligent repair is the only cause of action asserted against Cerritos, the Court grants summary judgment.

V. CONCLUSION

Defendant Cerritos Dodge Chrysler Jeep Ram's motion for summary judgment is GRANTED, in full.

Cerritos is to give notice.

DATED:

September 16, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

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